

SANHITA360

CHAPTER VII

OFFENCES RELATING TO THE ARMED FORCES

IPC Sections 131-140 and BNS Sections 159-168

Mutiny, desertion, insubordination and military impersonation

ACADEMIC NOTE

This material compares the IPC and BNS provisions relating to the Army, Navy and Air Force. Service-law jurisdiction and the exact applicable enactment must always be checked.

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Chapter Overview

This chapter protects discipline, allegiance and command within India's armed forces while preserving the operation of specialised military statutes. IPC Sections 131-140 correspond to BNS Sections 159-168, apart from repealed IPC Section 138A. The provisions address abetment of mutiny, assault on a superior officer, desertion, harbouring, negligent concealment on a merchant vessel, insubordination, service-law exclusions and deceptive use of military garb or tokens.

Learning Objectives

- Explain the graduated liability for abetting mutiny.
- Distinguish abetment of assault, desertion and insubordination.
- Apply knowledge and reason-to-believe standards in harbouring cases.
- Explain negligence-based liability of a merchant-vessel master.
- Identify the service-law exclusion and its purpose.
- Compare every operative IPC provision with BNS Sections 159-168.
- Identify repealed Section 138A and material BNS changes.

Master IPC-to-BNS Map

IPC	BNS	Subject / Change
Section 131	Section 159	Abetting mutiny or attempting to seduce personnel from duty
Section 132	Section 160	Abetment of mutiny when mutiny follows
Section 133	Section 161	Abetment of assault on superior officer
Section 134	Section 162	Abetment where the assault is committed
Section 135	Section 163	Abetment of desertion
Section 136	Section 164	Harbouring a deserter
Section 137	Section 165	Deserter concealed on merchant vessel through negligence
Section 138	Section 166	Abetment of insubordination
Section 138A	No counterpart	Indian Marine Service provision
Section 139	Section 167	Persons subject to service Acts
Section 140	Section 168	Wearing military garb or carrying token

Section-by-Section Statutory Study

Section 131 IPC: Abetting mutiny or attempting to seduce personnel from duty

Corresponding BNS provision: Section 159 BNS.

Abetting mutiny, or attempting to seduce an officer, soldier, sailor or airman from allegiance or duty, is punishable with imprisonment for life, or imprisonment up to ten years, and fine.

Transition: Substantially retained.

Section 132 IPC: Abetment of mutiny when mutiny follows

Corresponding BNS provision: Section 160 BNS.

If mutiny is committed in consequence of the abetment, punishment may be death, imprisonment for life, or imprisonment up to ten years, with fine.

Transition: Substantially retained.

Section 133 IPC: Abetment of assault on superior officer

Corresponding BNS provision: Section 161 BNS.

Abetting an assault by armed-forces personnel on a superior officer executing official duty is punishable with imprisonment up to three years and fine.

Transition: Substantially retained.

Section 134 IPC: Abetment where the assault is committed

Corresponding BNS provision: Section 162 BNS.

If that assault is committed in consequence of the abetment, imprisonment may extend to seven years, with fine.

Transition: Substantially retained.

Section 135 IPC: Abetment of desertion

Corresponding BNS provision: Section 163 BNS.

Abetting desertion by an officer, soldier, sailor or airman is punishable with imprisonment up to two years, fine, or both.

Transition: Substantially retained.

Section 136 IPC: Harboursing a deserter

Corresponding BNS provision: Section 164 BNS.

Knowing or having reason to believe that armed-forces personnel has deserted and harbouring that person is punishable with imprisonment up to two years, fine, or both.

Transition: The IPC exception for a wife harbouring her husband becomes a gender-neutral spouse exception.

Section 137 IPC: Deserter concealed on merchant vessel through negligence

Corresponding BNS provision: Section 165 BNS.

A master or person in charge of a merchant vessel may incur a penalty where neglect of duty or want of discipline prevented discovery of a concealed deserter, even without actual knowledge.

Transition: Maximum penalty increases from Rs. 500 to Rs. 3,000.

Section 138 IPC: Abetment of insubordination

Corresponding BNS provision: Section 166 BNS.

A person who knowingly abets an act of insubordination is punishable if that act is committed in consequence.

Transition: Maximum imprisonment increases from six months to two years; fine or both remain available.

Section 138A IPC: Indian Marine Service provision

Corresponding BNS provision: No operative counterpart.

This provision was repealed by the Amending Act, 1934 and has no operative BNS counterpart.

Transition: Historical only; do not cite as current law.

Section 139 IPC: Persons subject to service Acts

Corresponding BNS provision: Section 167 BNS.

Persons subject to the specified service laws are excluded from punishment under this general penal chapter for its defined offences.

Transition: The BNS expressly names the Air Force Act, 1950, Army Act, 1950 and Navy Act, 1957.

Section 140 IPC: Wearing military garb or carrying token

Corresponding BNS provision: Section 168 BNS.

A non-member who wears resembling military garb or carries a resembling token intending others to believe that person is service personnel is punishable with imprisonment up to three months, fine, or both.

Transition: Maximum fine increases from Rs. 500 to Rs. 2,000.

Material Changes Under the BNS

IPC	BNS	Subject / Change
Section 136	Section 164	Harbouring exception changes from wife/husband to spouse of the deserter.
Section 137	Section 165	Merchant-vessel maximum penalty rises from Rs. 500 to Rs. 3,000.
Section 138	Section 166	Maximum imprisonment rises from six months to two years.
Section 139	Section 167	Modern service statutes are expressly identified.
Section 140	Section 168	Maximum fine rises from Rs. 500 to Rs. 2,000.

Key Points

- Mutiny and completed mutiny attract different punishment provisions.
- The assault provisions require the superior officer to be executing official duty.
- Harbouring requires knowledge or reason to believe that the person deserted.
- Merchant-vessel liability may arise through neglect despite ignorance of concealment.
- Insubordination abetment requires knowledge and commission of the act in consequence.
- Persons governed by the specified service Acts fall outside punishment under this general chapter.
- Military-garb liability requires deceptive intention, not mere resemblance.
- Repealed IPC Section 138A has no current BNS counterpart.

Legal References - Important Statutory Provisions

- Indian Penal Code, 1860 - Sections 131-140.
- Bharatiya Nyaya Sanhita, 2023 - Sections 159-168.
- Army Act, 1950.
- Air Force Act, 1950.
- Navy Act, 1957.
- Bharatiya Nyaya Sanhita, 2023 - Section 2(28): public servant, where relevant.

Exam Focus

Identify the protected service relationship and the accused's precise conduct. For abetment, prove the applicable mode and consequence. For harbouring, establish knowledge or reason to believe; for merchant-vessel concealment, identify the neglect or want of discipline; for false garb or tokens, prove deceptive intention. Always mention the exclusion for persons subject to the specified service Acts and compare the updated BNS punishment or wording.

Revision Notes

- IPC 131-140 map to BNS 159-168, except repealed IPC 138A.
- IPC 131/BNS 159 covers abetting mutiny or seducing personnel from duty.
- IPC 132/BNS 160 applies when mutiny is committed in consequence.
- The harbouring exception is now spouse-neutral.

- BNS 165 raises the merchant-vessel penalty to Rs. 3,000.
- BNS 166 raises the insubordination maximum to two years.
- BNS 168 raises the military-garb/token fine to Rs. 2,000.

Official Reading and Disclaimer

[Bharatiya Nyaya Sanhita, 2023 - official Ministry of Home Affairs text](#)

[Indian Penal Code, 1860 - India Code text](#)

Check the applicable service law, amendments and binding judicial interpretation. This material does not provide legal advice.